

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 4461

By: Newton

6 AS INTRODUCED

7 An Act relating to professions and occupations;
8 amending 59 O.S. 2021, Section 328.23, which relates
9 to temporary licensing of dentists and dental
10 hygienists; establishing a limited temporary
11 licensure for foreign-trained dentists and dental
12 hygienists; requiring certain training and
13 qualifications; and providing an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 59 O.S. 2021, Section 328.23, is
15 amended to read as follows:

16 Section 328.23. A. The President of the Board of Dentistry,
17 upon verification that a person meets the requirements provided for
18 in this section and any other requirements provided for in the State
19 Dental Act, may issue an emergency temporary license to practice
20 dentistry for thirty (30) days. A temporary license may be extended
21 but shall not exceed ninety (90) days or the next available
22 regularly scheduled Board meeting.

23 B. The President of the Board, upon verification that a person
24 meets the requirements provided for in the State Dental Act, may

1 issue an emergency temporary license to practice dental hygiene,
2 which shall expire as of the date of the next dental hygiene
3 clinical examination in Oklahoma, as required by the Board.

4 C. An active duty military spouse residing with the active duty
5 member having met the requirements for licensure shall be eligible
6 for a temporary license.

7 D. Any applicant requesting an emergency temporary license
8 shall submit a letter explaining the exigent circumstances along
9 with all application materials. The determination of whether or not
10 to grant the emergency temporary license based upon the exigent
11 circumstances shall be at the sole discretion of the President or
12 acting President of the Board.

13 E. A holder of a temporary license to practice dentistry or
14 dental hygiene shall have the same rights and privileges and be
15 governed by the State Dental Act and the rules of the Board in the
16 same manner as a holder of a permanent license to practice dentistry
17 and dental hygiene.

18 F. The President of the Board may authorize patient treatment
19 and care by individuals taking the Commission on Dental Competency
20 Assessments (CDCA) or the Western Regional Examining Board exam, or
21 other regional exams as approved by the Board, in order for such
22 individuals to complete criteria related to Board examinations. The
23 Board may authorize specialty examinations to be given throughout
24 the year as needed.

1 G. A foreign-trained dentist may apply for limited temporary
2 licensure not to exceed five (5) years. The Board may issue a
3 limited temporary license to foreign-trained dentists upon
4 determining that the applicant has:

5 1. Provided proof of graduation from a dental school whose
6 curriculum is substantially equivalent to that of an accredited U.S.
7 dental school, as determined by the Board;

8 2. Provided proof of successful completion of the ADEX Dental
9 Licensure Examination;

10 3. Provided documentation of passing scores on the Integrated
11 National Board Dental Examination (INDBE) or a clinical licensing
12 examination recognized by the Board;

13 4. Completed a two- or three-year postgraduate training program
14 in the field of Periodontics or Prosthodontics in the applicant's
15 licensing country;

16 5. Practiced as a licensed dentist for at least three (3) of
17 the last five (5) years outside of the United States;

18 6. Paid any application or examination fees as set by the
19 Board;

20 7. Demonstrated competency as determined by the Board;

21 8. Demonstrated sufficient evidence of good moral character;

22 and

23 9. Submitted evidence of a bona fide offer of employment at an
24 employer operating in a qualifying setting in this state, limited to

1 a public health program, hospital, Federally Qualified Health Center
2 (FQHC), or accredited educational institution in this state, to
3 perform services aligning with the applicant's qualifications and
4 experience.

5 H. A foreign-trained dentist holding a limited temporary
6 license shall be subject to the following conditions:

7 1. Provide dental services on in the qualifying settings
8 described in paragraph 9 of subsection G of this section; and

9 2. Be supervised by a licensed dentist in this state, who will
10 assume professional responsibility for all care rendered.

11 I. A foreign-trained dentist may apply for dental hygienist
12 license in this state. The Board may issue a dental hygienist
13 license to a foreign-trained dentist upon determining the applicant
14 has:

15 1. Been lawfully engaged in the practice of dentistry for at
16 least three (3) years in a foreign jurisdiction that regulates
17 dental licensure;

18 2. Provided proof of successful completion of the ADEX Dental
19 Hygiene Licensure Examination;

20 3. Provided a certificate of registration and verification of
21 duration of practice from the appropriate dental regulatory
22 authority in the foreign jurisdiction;

23 4. Demonstrated that the education and clinical training
24 received abroad is substantially equivalent to the standards

1 required of dental hygienists in this state, as determined by the
2 Board; and

3 5. If recommended by the Board, completed a course and
4 evaluation of skills at the OU College of Dentistry.

5 Upon the applicant's meeting these requirements and any others
6 as established by rule, the Board may issue a license to the
7 applicant to practice dental hygiene under the State Dental Act.

8 J. Any foreign-trained applicant must demonstrate proficiency
9 in the English language satisfactory to the Board, as verified by
10 passing a Board-approved examination.

11 K. All credentials, diplomas, and other required documentation
12 in a foreign language submitted to the Board must be accompanied by
13 notarized English translations. Foreign applicants must provide
14 satisfactory evidence of lawful status in the United States, as
15 defined by the United States Citizenship and Immigration Services
16 (USCIS).

17 L. The Board shall promulgate rules and regulations for the
18 implementation, oversight, and renewal of temporary licenses for
19 foreign-trained dentists in accordance with the Oklahoma
20 Administrative Procedures Act.

21 SECTION 2. This act shall become effective November 1, 2026.

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